

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #12	CCRB Case #: 201808554	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/09/2018 9:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/24/2020	Precinct: 32		
Date/Time CV Reported Mon, 10/15/2018 2:40 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 10/15/2018 2:40 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Liam Ohara	4408	946632	GANG MN
2. DT3 Timothy Gaven	4659	934913	GANG MN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Thompson	29873	923251	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Timothy Gaven	Abuse of Authority: At § 87(2)(b) in Manhattan, Detective Timothy Gaven stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . DT3 Liam Ohara	Abuse of Authority: At § 87(2)(b) in Manhattan, Detective Liam O'Hara stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . DT3 Timothy Gaven	Abuse of Authority: At § 87(2)(b) in Manhattan, Detective Timothy Gaven questioned § 87(2)(b)	C . Unsubstantiated
D . DT3 Liam Ohara	Discourtesy: At § 87(2)(b) in Manhattan, Detective Liam O'Hara spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . DT3 Timothy Gaven	Discourtesy: At § 87(2)(b) in Manhattan, Detective Timothy Gaven spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . DT3 Liam Ohara	Abuse of Authority: At § 87(2)(b), Detective Liam O'Hara searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated
G . DT3 Liam Ohara	Force: At § 87(2)(b), Detective Liam O'Hara used physical force against § 87(2)(b)	G . Exonerated
H . DT3 Timothy Gaven	Force: At § 87(2)(b) in Manhattan, Detective Timothy Gaven used physical force against § 87(2)(b)	H . Exonerated
I . DT3 Timothy Gaven	Discourtesy: At § 87(2)(b) in Manhattan, Detective Timothy Gaven spoke discourteously to § 87(2)(b)	I . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
J . DT3 Timothy Gaven	Abuse of Authority: At § 87(2)(b) in Manhattan, Detective Timothy Gaven searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	J . Unsubstantiated
K . DT3 Liam Ohara	Abuse of Authority: At § 87(2)(b), Detective Liam O'Hara searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	K . Exonerated
L . DT3 Timothy Gaven	Abuse of Authority: At § 87(2)(b) in Manhattan, Detective Timothy Gaven searched the vehicle in which § 87(2)(b) was an occupant.	L . Exonerated
M . DT3 Timothy Gaven	Discourtesy: At the 32nd Precinct stationhouse, Detective Timothy Gaven spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . DT3 Timothy Gaven	Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven refused to provide his shield number to § 87(2)(b)	N . Unsubstantiated
O . DT3 Timothy Gaven	Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven searched the vehicle in which § 87(2)(b) was an occupant.	O . Substantiated
P . DT3 Liam Ohara	Abuse of Authority: At the 32nd Precinct stationhouse, Detective Liam O'Hara searched the vehicle in which § 87(2)(b) was an occupant.	P . Substantiated
Q . DT3 Liam Ohara	Abuse of Authority: At the 32nd Precinct stationhouse, Detective Liam O'Hara damaged § 87(2)(b) property.	Q . Unsubstantiated
R . DT3 Timothy Gaven	Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven damaged § 87(2)(b) property.	R . Unsubstantiated

Case Summary

On October 15, 2018, § 87(2)(b) filed this complaint in person at the CCRB.

On October 9, 2018 at approximately 9:50PM, Detective Timothy Gaven and Detective Liam O'Hara, of the Manhattan Gang Squad, stopped § 87(2)(b) and § 87(2)(b) who were sitting in an idling vehicle parked in front of a fire hydrant at § 87(2)(b)

§ 87(2)(b) in Manhattan (**Allegations A and B-Abuse of Authority: Exonerated**). Det. Gaven allegedly asked § 87(2)(b) to provide his identification (**Allegation C-Abuse of Authority: Unsubstantiated**). Det. O'Hara allegedly asked § 87(2)(b) "What the fuck are you asking questions for? Just give us your fucking IDs" and told her that she was "not fucking calling anybody" (**Allegation D-Discourtesy: Unsubstantiated**). Det. Gaven allegedly told § 87(2)(b) that she needed to provide her ID "because we're the fucking cops and we asked for your IDs" (**Allegation E-Discourtesy: Unsubstantiated**). Det. O'Hara allegedly reached inside § 87(2)(b)'s vehicle and pulled her outside by her arms (**Allegation F-Abuse of Authority-Exonerated, Allegation G-Force: Exonerated**). Det. Gaven allegedly pushed § 87(2)(b) against the vehicle and told him to "shut the fuck up" (**Allegation H-Force: Exonerated, Allegation I-Discourtesy: Unsubstantiated**). Det. Gaven entered § 87(2)(b)'s vehicle and obtained a gravity knife (**Allegation J-Abuse of Authority: Unsubstantiated**). Det. O'Hara and Det. Gaven conducted a search of § 87(2)(b)'s vehicle prior to driving it to the 32nd Precinct stationhouse (**Allegations K and L-Abuse of Authority: Exonerated**).

Once at the 32nd Precinct stationhouse, § 87(2)(b) told Det. Gaven that he believed that he felt the officers profiled him. Det. Gaven allegedly responded, "You're not gonna play that shit with me, that's not profiling" (**Allegation M-Discourtesy: Unsubstantiated**). § 87(2)(b) asked for Det. Gaven's shield number, which Det. Gaven allegedly refused to provide (**Allegation N-Abuse of Authority: Unsubstantiated**). Det. O'Hara and Det. Gaven allegedly conducted an additional search of § 87(2)(b)'s vehicle at the stationhouse (**Allegations O and P- Abuse of Authority: Substantiated**). Det. O'Hara and Det. Gaven allegedly damaged § 87(2)(b)'s safe during this search (**Allegations Q and R-Abuse of Authority: Unsubstantiated**).

§ 87(2)(b) and § 87(2)(b) were arrested as a result of this incident and charged with § 87(2)(a) 160.50.

§ 87(2)(b) provided the investigation with cell phone video footage of the incident, that was taken by an unknown individual (Board Review 01, summary is located at Board Review 02). The investigation obtained video from the 32nd Precinct stationhouse; however, this footage was not useful in assessing any of the allegations (Board Review 03). A request for body-worn camera footage was returned with negative results. Neither Det. O'Hara nor Det. Gaven were equipped with body-worn cameras.

§ 87(2)(g)

Findings and Recommendations

Allegation A-Abuse of Authority: At § 87(2)(b)

in Manhattan, Detective Timothy Gaven stopped the vehicle in which § 87(2)(b)
and § 87(2)(b) **were occupants.**

Allegation B-Abuse of Authority: At § 87(2)(b)

in Manhattan, Detective Liam O'Hara stopped the vehicle in which § 87(2)(b)
and § 87(2)(b) **were occupants.**

It is undisputed that at the time of the incident, § 87(2)(b) was parked in front of a fire hydrant and that the engine was running. § 87(2)(b) was in the driver's seat and § 87(2)(b) was in the front passenger's seat.

§ 87(2)(b) testified that at the time of the incident, she was dropping off § 87(2)(b) in front of his building (Board Review 04). Once she parked in front of the fire hydrant, she called her cousin in order to see if she could use his bathroom; her cousin did not pick up the phone. At this point, Det. O'Hara and Det. Gaven approached the vehicle.

Det. Gaven and Det. O'Hara stated that they were in the area at the time of the incident because they were canvassing for video footage from a shooting that occurred approximately two weeks prior (Board Review 05,06). In the video footage that the detectives had of an incident, a young black or Hispanic male with a goatee and a bright yellow sweatshirt was seen with a gun in a video described by the detectives as "grainy." Det. Gaven observed § 87(2)(b) a black male with a goatee, who at the time of the incident was wearing a bright yellow sweatshirt, in § 87(2)(b) s front passenger seat. Det. Gaven stated that he and Det. O'Hara decided to approach the car to "make inquiries as to the possible identity of the individual fitting the description from the shooting incident."

Vehicle Traffic Law: Article 32, Section 1202 (3b) states that no person shall stop, stand, or park within fifteen feet of a fire hydrant, except when such a vehicle is attended by a licensed operator or chauffeur who is seated in the front seat and who can immediately move such a vehicle in case of emergency (Board Review 07). "A person stopping his car besides a hydrant attenuates his or her privacy interest to the extent that it becomes appropriate for the police, upon approaching in order to direct the removal of the car, to make limited inquiries to ascertain that such person is a licensed driver." People v. Thomas, 792 N.Y.S.2d 472 (App. Div. 2005) (Board Review 08).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C-Abuse of Authority: At § 87(2)(b)

in Manhattan, Detective Timothy Gaven questioned § 87(2)(b)

In her verified statement, § 87(2)(b) stated that Det. O'Hara and Det. Gaven asked both her and § 87(2)(b) for their identification multiple times and that when she and § 87(2)(b) asked why the officers needed this information, the officers stated that they wanted to ask questions.

In his verified statement, § 87(2)(b) stated that Det. Gaven asked for his and § 87(2)(b)'s identification and that when asked why, Det. Gaven stated that they were not in trouble (Board Review 09).

As discussed above, Det. Gaven stated that he approached the car because he wanted to “make inquiries as to the possible identity of the individual fitting the description from the shooting incident.” Det. Gaven stated that when he approached the passenger side door, he asked § 87(2)(b) for his identification

Det. O’Hara acknowledged asking § 87(2)(b) for her identification but did not testify as to asking § 87(2)(b) for his identification.

§ 87(2)(g)

According to Patrol Guide Procedure 212-11, during a level 1 request for information, a police officer may seek information related to the reason the person was approached if those questions are related to the objective credible reason for the approach. A reason is objectively credible if it is based on more than a hunch or a whim. (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D-Discourtesy: At § 87(2)(b) in Manhattan, Detective Liam O'Hara spoke discourteously to § 87(2)(b)

Allegation E-Discourtesy: At § 87(2)(b) in Manhattan, Police Officer Timothy Gaven spoke discourteously to § 87(2)(b)

In her verified statement regarding this incident, § 87(2)(b) stated that at the time of this incident, she had a gravity knife inside a closed compartment near the center console of her car. § 87(2)(b) stated that when Det. O’Hara and Det. Gaven came to her car, they identified themselves as police officers and asked both her and § 87(2)(b) to provide their identification. § 87(2)(b) and § 87(2)(b) both asked as to why they needed their IDs. The detectives stated that they were trying to ask them some questions and that their IDs were necessary. § 87(2)(b) asked what kind of questions the officers wanted to ask them. Det. O’Hara stated, “What the fuck are you asking questions for? Just give us your fucking ID.” § 87(2)(b) told Det. O’Hara that she would not give him anything because he was cursing at her. Det. O’Hara told § 87(2)(b)

§ 87(2)(b) to turn her car off. § 87(2)(b) told Det. O'Hara that she would not do so because he was cursing at her and would not answer her questions.

In a follow-up phone statement with the CCRB on October 26, 2018, § 87(2)(b) alleged in response to her questioning the officers about why they needed identification, Det. Gaven stated, "Because we're the fucking cops and we asked for your IDs" (Board Review 12). § 87(2)(b) also clarified that she had her phone out prior to Det. O'Hara removing her from the vehicle. Det. O'Hara initially reached into the vehicle and turned the car off; at this point, § 87(2)(b) stated she was going to call somebody. Det. O'Hara stated, "You're not fucking calling anybody."

§ 87(2)(g)
§ 87(2)(b) did not corroborate § 87(2)(b)'s allegation that Det. Gaven used any profanity before he and § 87(2)(b) were out of the car and § 87(2)(b) did not allege that Det. O'Hara stated "What the fuck are you asking questions for? Just give us your fucking ID." However, § 87(2)(b) also alleged that when § 87(2)(b) told Det. O'Hara that she was going to call someone, Det. O'Hara responded, "You're not going to fucking call anybody."

The video footage provided by § 87(2)(b) does not capture the time when these allegations took place (Board Review 01).

Det. O'Hara and Det. Gaven both stated that they asked § 87(2)(b) for her identification and Det. Gaven testified as to asking § 87(2)(b) for his identification. Neither provided their IDs. Both officers denied that Det. O'Hara said, "What the fuck are you asking questions for? Just give us your fucking ID" and "You're not fucking calling anybody" to § 87(2)(b) and denied that Det. Gaven said, "Because we're the fucking cops and we asked for your IDs" to § 87(2)(b).

§ 87(2)(g)
It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation F-Abuse of Authority: At § 87(2)(b)
Detective Liam O'Hara searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation G-Force: At § 87(2)(b)
Detective Liam O'Hara used physical force against § 87(2)(b)
§ 87(2)(b) testified that after she refused to provide her identification to the officers, Det. O'Hara opened § 87(2)(b)'s door, turned off her keys, and pulled her out of the vehicle by her upper arms. § 87(2)(b) felt that a male officer should not be physically touching her and told him that he was sexually assaulting her. § 87(2)(b) tried to get her phone but Det. O'Hara took her phone away and stated that she was not going to call anyone.

§ 87(2)(b) testimony was consistent with § 87(2)(b)'s testimony regarding these allegations.

Det. O'Hara and Det. Gaven testified that while Det. O'Hara was at § 87(2)(b)'s driver's side, Det. Gaven, who was at the passenger's side, the officers, looked at him over the roof of the car and gestured to a knife that was located in the center console, either in a cupholder or in an area underneath the radio. Both Det. O'Hara and Det. Gaven described the knife as a folding knife; neither had any particularized suspicion that the knife was a gravity knife but both stated that the knife presented a threat to their safety as it was in reach of both § 87(2)(b) and § 87(2)(b) who were ignoring the detectives' lawful orders. Neither officer recalled § 87(2)(b) ever having her phone out on scene.

Det. O'Hara stated that after § 87(2)(b) refused to provide her identification, he opened the driver's side door and gave § 87(2)(b) a "final warning" by telling her to get out of the car. Det. O'Hara stated in his CCRB interview that at that point, he "was not talking nicely anymore." § 87(2)(b) still refused to exit the vehicle. Det. O'Hara then grabbed § 87(2)(b)'s arms and pulled her out of the vehicle by her arms.

Det. Gaven did not see Det. O'Hara use any physical force against § 87(2)(b) as he was on the other side of the car interacting with § 87(2)(b).

An officer is allowed to direct an individual to shut off the ignition of their vehicle, or exit the vehicle to ensure their safety during a vehicle stop. People v. Diaz, 41 N.Y.2d 876 (1977) (Board Review 13). An officer breaching the plane of the car doorway with his body or his arm to reach inside a vehicle constitutes a search of that vehicle. People v. Hernandez, 238 A.D.2d 131 (App. Div. 1997). (Board Review 14). Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any use of force must be reasonable under the circumstances (Board Review 15).

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **exonerated**.

Allegation H-Force: At § 87(2)(b) in Manhattan, Detective Timothy Gaven used physical force against § 87(2)(b)

Allegation I-Discourtesy: At § 87(2)(b) in Manhattan, Detective Timothy Gaven spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that she did not see how § 87(2)(b) got out of the vehicle and did not allege that any officer used profanity in speaking with him.

§ 87(2)(b) alleged that after Det. O'Hara pulled § 87(2)(b) out of the car, Det. Gaven opened the passenger's side door and told § 87(2)(b) to get out of the car. § 87(2)(b) was compliant in getting out of the car; Det. Gaven did not use any force in removing him. Once § 87(2)(b) was out of the car, with his right hand, Det. Gaven grabbed the back of § 87(2)(b)'s hooded sweatshirt, crumpled it in his hand, and pushed him against the side of the car. § 87(2)(b)'s chest hit the car as a result of the force. Det. Gaven handcuffed § 87(2)(b). While

this was happening, § 87(2)(b) asked Det. Gaven what was happening. Det. Gaven responded by saying, “Shut the fuck up.”

Video footage was provided to the CCRB by § 87(2)(b) who stated that she received the video from a stranger who sent it to an unidentified friend of § 87(2)(b). The video begins after § 87(2)(b) and § 87(2)(b) are already out of the car. At 0:34 in the video, § 87(2)(b) says, “Help, I didn’t do anything, call my mom!” § 87(2)(b) body is elevated at the time and it appears he is trying to climb over the hood of the vehicle. Det. Gaven then grabs § 87(2)(b) back and pushes him against the side of the vehicle. Bystanders call out to Det. Gaven that what he is doing is unnecessary. At 0:56 in the recording, other officers arrive to the scene and tell civilians to back up.

Det. O’Hara and Det. Gaven both stated that when § 87(2)(b) and § 87(2)(b) were out of the vehicle, they yelled out that they were being assaulted and incited a nearby crowd of approximately twenty-five people to form. Det. O’Hara and Det. Gaven recognized some of the faces in the crowd as people who were present during the shooting that occurred two weeks prior. At this point, § 87(2)(b) and § 87(2)(b) were considered under arrest for disorderly conduct.

Det. Gaven stated that while § 87(2)(b) was verbally resistant, he was not physically resistant. Det. Gaven never told § 87(2)(b) to “shut the fuck up.” Det. Gaven handcuffed § 87(2)(b) without issue. Det. Gaven never grabbed the back of § 87(2)(b) hooded sweatshirt and pushed him against the car. Det. Gaven never used any physical force against § 87(2)(b) and stated that he did not need to as § 87(2)(b) was not physically resisting.

After being shown the aforementioned video, Det. Gaven stated that § 87(2)(b) was trying to jump over the front of § 87(2)(b)’s car and he prevented this by pulling § 87(2)(b) off of the vehicle. Det. Gaven initially stated that he then pushed § 87(2)(b) against the car but then modified that and stated that he “placed” § 87(2)(b) against the car.

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any use of force must be reasonable under the circumstances (Board Review 16).

§ 87(2)(g)
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§ 87(2)(g) It is therefore recommended that **Allegation H** be closed as **exonerated**.

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation I** be closed as **unsubstantiated**.

Allegation J- Abuse of Authority: At § 87(2)(b)

§ 87(2)(b), **Detective Timothy Gaven searched the vehicle in which** § 87(2)(b) **and** § 87(2)(b) **were occupants.**

Neither § 87(2)(b) nor § 87(2)(b) saw any officer inside § 87(2)(b)'s vehicle at the scene of their arrests.

§ 87(2)(b) stated that she had a knife located inside a closed compartment inside the vehicle.

§ 87(2)(b) stated that the knife is a folding knife that has an approximately three inch length blade; it is not a gravity knife and that it needs to be manually opened.

§ 87(2)(b) stated that he became aware of a knife being in the car following his arrest because Det. Gaven came into the stationhouse and stated that he found a gravity knife inside the car.

As discussed in Allegations C, D, E, and F, Det. Gaven and Det. O'Hara both stated that they observed a knife in the center console area of the vehicle.

Det. Gaven stated that he believed that after backup officers arrived, the crowd was dispersed, and § 87(2)(b) and § 87(2)(b) were placed in RMPs, he entered the vehicle and removed the knife from the center console. Once the knife was removed, an officer conducted a gravity knife field test, which consists of flicking the knife by the wrist and seeing if it opens by the sheer force of gravity. Det. Gaven believed that he was the officer who did this but was not completely sure. The results of the test were that the knife was a gravity knife.

Det. O'Hara stated that he did not believe the knife was taken out at the location of the arrests because the scene was chaotic. Det. O'Hara believed he obtained the knife when he drove the car back to the stationhouse.

§ 87(2)(a) 160.50

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation K-Abuse of Authority: At § 87(2)(b)

§ 87(2)(b), **Detective Liam O'Hara searched the vehicle in which** § 87(2)(b) **and** § 87(2)(b) **were occupants.**

Allegation L-Abuse of Authority: At § 87(2)(b)

§ 87(2)(b), **Detective Timothy Gaven searched the vehicle in which** § 87(2)(b) **and** § 87(2)(b) **were occupants.**

As discussed above, neither § 87(2)(b) nor § 87(2)(b) alleged that a vehicle search was conducted at the scene of their arrests.

Det. O'Hara and Det. Gaven both testified that § 87(2)(b)'s car needed to be removed to the stationhouse because they could not leave it parked in front of a fire hydrant.

Det. O'Hara did not recall searching the vehicle on scene but stated that he did not believe there was a search on scene because he wanted to get out as quickly as possible. Det. O'Hara stated that the only search of the car that he conducted was at the 32nd Precinct stationhouse. Once at the stationhouse, Det. O'Hara did a "cursory search" of the front passenger seat and driver's seat and looked only in areas that were of reach to § 87(2)(b) and § 87(2)(b).

Det. Gaven stated that he and Det. O'Hara conducted a search of the front and backseat prior to leaving the scene. This search was done because they discovered a knife in the car, they thought § 87(2)(b) may have had a firearm, and for safety purposes because they were taking the car into police custody and "to make sure there were no bombs in there." Det. Gaven did not believe that anything was recovered during this search.

When a vehicle is to be transported to the precinct, a police officer may search the vehicle at the scene to protect them from any danger before it is brought back to the precinct. People v. Dickens 218 A.D.2d 584 (App. Div. 1995) (Board Review 19).

§ 87(2)(g)

It is therefore recommended that **Allegations K and L** be closed as **exonerated**.

Allegation M-Discourtesy: At the 32nd Precinct stationhouse, Detective Timothy Gaven spoke discourteously to § 87(2)(b)

Allegation N-Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven refused to provide his shield number to § 87(2)(b)

It is undisputed that while alone in the cell area of the 32nd Precinct stationhouse, Det. Gaven told § 87(2)(b) that he matched the description of a shooting suspect. § 87(2)(g)

§ 87(2)(b) stated that the conversation began when he asked Det. Gaven to explain what was going on as he was unclear as to why he was being arrested. Det. Gaven told § 87(2)(b) that there was a shooting a few days prior to this incident and that Det. Gaven and Det. O'Hara chased the suspect on foot. The suspect was wearing the same hooded sweatshirt as § 87(2)(b) was wearing. Det. Gaven stated that they thought § 87(2)(b) may have been the suspect but that when he pulled off his hooded sweatshirt, they realized he was not. Det. Gaven said that while they realized § 87(2)(b) was not the shooting suspect, § 87(2)(b) was getting "rowdy" with his partner, so they had to be arrested. § 87(2)(b) told Det. Gaven that he felt that the officers were profiling him. Det. Gaven said, "You're not gonna play that shit with me, that's not profiling." At that point, Det. Gaven placed § 87(2)(b) in the cell. § 87(2)(b) asked Det. Gaven for his name and shield number. Det. Gaven stated his name and spelled it for § 87(2)(b) but did not provide his shield number. § 87(2)(b) did not ask again for his shield number. § 87(2)(b) provided Det. Gaven's name to the CCRB but did not know his shield number.

Det. Gaven stated when informed of the reason for the stop, § 87(2)(b) did not accuse Det. Gaven of racial profiling. Det. Gaven never told § 87(2)(b) “You’re not gonna play that shit with me; that’s not profiling.” Det. Gaven did not recall § 87(2)(b) asking for his shield number during this conversation and did not refuse to give him his shield number upon request. Det. Gaven still did not know if § 87(2)(b) was the shooting suspect and stated that he could not prove that it was him or that it was not him.

§ 87(2)(g)

It is therefore recommended that **Allegations M and N** be closed as **unsubstantiated**.

Allegation O-Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven searched the vehicle in which § 87(2)(b) was an occupant.

Allegation P-Abuse of Authority: At the 32nd Precinct stationhouse, Detective Liam O’Hara searched the vehicle in which § 87(2)(b) was an occupant.

Allegation Q-Abuse of Authority: At the 32nd Precinct stationhouse, Detective Liam O’Hara damaged § 87(2)(b) s property.

Allegation R-Abuse of Authority: At the 32nd Precinct stationhouse, Detective Timothy Gaven damaged § 87(2)(b) s property.

§ 87(2)(b) and § 87(2)(b) both stated that they were coming back from Vermont at the time of the incident and that § 87(2)(b) had approximately 3.5 grams of marijuana inside a bottle, located inside a safe in the backseat of the vehicle. After they were released with their DATs and went back to § 87(2)(b) s car, there were papers flung around the interior and § 87(2)(b) backpack, which was located in the trunk, was open and its contents were scattered in the trunk.

§ 87(2)(b) stated that when she was released, she noticed that her safe had been pried open with a knife, damaging it. The marijuana was still in the safe. On May 31, 2019, § 87(2)(b) provided the investigation with photos of the cloth safe (Board Review 20). Fabric on one side of the safe appears slightly frayed in the photos but no other damage is apparent.

§ 87(2)(b) testified that while he and § 87(2)(b) were in the cells, Det. Gaven came inside the cell area and said that they found their “little safe” and asked whose marijuana it was. Both § 87(2)(b) and § 87(2)(b) denied that it was theirs. Det. Gaven responded that he was going to let them have it. § 87(2)(b) stated that when he returned to the car, the safe was open and damaged but he did not recall how the safe was damaged.

Det. O’Hara stated that when he arrived at the 32nd Precinct stationhouse, he conducted a “ cursory search” of the front passenger seat and driver’s seat and looked only in areas that were of reach to § 87(2)(b) and § 87(2)(b). Det. O’Hara noted that there was a lot of “junk” inside the car. Det. O’Hara did not recall seeing a locked safe inside the car and did not recall trying to open a locked safe inside a vehicle. Det. O’Hara did not recall uncovering any marijuana in the vehicle. Det. O’Hara stated that if he had uncovered marijuana, he would have charged them with it.

During his interview, Det. O'Hara stated that it was "amazing" and "incredible" that § 87(2)(b) and § 87(2)(b) would allege that they had marijuana that they weren't charged with.

Det. Gaven stated that while at the stationhouse, he and Det. O'Hara searched the front and backseat of § 87(2)(b)'s car again for the same reasons why they searched the vehicle on scene (they discovered a knife in the car, they thought § 87(2)(b) may have had a firearm, and for safety purposes because they were taking the car into police custody and "to make sure there were no bombs in there."). Nothing was recovered during this search. Det. Gaven did not recall seeing a locked container in the backseat of the vehicle. Det. Gaven did not recall opening a locked container found in the car. When asked if he ever recovered any marijuana from the vehicle, Det. Gaven responded that if there was a "significant amount" of marijuana in the vehicle, § 87(2)(b) and § 87(2)(b) would have been charged for it. When asked if there was any marijuana, significant amount or not, Det. Gaven stated that he did not recall.

The only piece of property that was vouchered during this incident was the gravity knife (Board Review 21).

Officers must conduct inventory searches pursuant to a familiar routine procedure. The procedure must meet two standards of reasonableness. First, the procedure must be rationally designed to meet the objectives that justify the search in the first place. Second, the procedure must clearly limit the conduct of individual officers to ensure that the searches are carried out consistently and reasonably and do not become little more than an excuse for general rummaging to discover incriminating evidence. People v. Galak, 80 N.Y.2d 715, 719 (1993) (Board Review 22).

An inventory search is undertaken in order to "protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service and others against dangerous instrumentalities" and an officer is to "remove all valuables from the vehicle and invoice on a separate property clerk invoice." In an inventory search, officers may force open the trunk, glove compartment, and other closed areas, only if it can be done with minimal damage. Patrol Guide Procedure 218-13 (Board Review 23).

Police officers are authorized to search a vehicle incident to a recent occupant's arrest only when the arrestee is unsecured and within reaching distance of the passenger compartment at the time of the search or when an officer has reasonable belief that evidence of the offense of arrest may be found in the vehicle. Arizona v. Gant, 556 U.S. 332 (2009) (Board Review 27).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

it is therefore recommended that **Allegations O** and **P** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations Q** and **R** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) and § 87(2)(b) have been parties.
- Detective Timothy Gaven has been a member of service for ten years and has been a subject in seven CCRB complaints and fifteen allegations, of which three have been substantiated.
 - 201212754 involved substantiated allegations of a stop, frisk, and detainment against Det. Gaven; the Board recommended Charges and Det. Gaven was found not guilty in an APU trial.
 - § 87(2)(g)
- Detective Liam O'Hara has been a member of service for ten years and has been a subject in eight CCRB complaints and 24 allegations, of which two have been substantiated.
 - 201210366 involved a substantiated allegation of a stop against Det. O'Hara; the Board recommended Command Discipline and the NYPD declined to take disciplinary action.
 - 201306106 involved a substantiated allegation of a retaliatory summons against Det. O'Hara; the Board recommended instructions, which was subsequently imposed by the NYPD.
 - § 87(2)(g)

Mediation, Criminal, and Civil Histories

- This case was not suitable for mediation.
- As of April 16, 2019, the New York City Office of the Comptroller has no record of a notice of claim filed in regards to this incident (Board Review 24).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date